

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

EARLEAN EDWARDS DUKART, *Complainant*

v.

OCEAN STAR INTERNATIONAL INC., D/B/A INTERNATIONAL
VAN LINES, *Respondent*.

DOCKET NO. 20-03

Served: March 30, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER TO BRIEF MOTION TO DISMISS

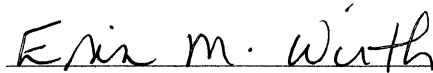
On February 12, 2020, an initial order was issued stating that the parties “must submit a joint status report with proposed schedule, as outlined below, within twenty days of the service of the answer.” Initial Order at 1. On March 20, 2020, the parties were sent an email reminding them of the requirement to file a status report and indicating that the report should be submitted by email. To date, no status report has been received.

On February 27, 2020, Respondent filed an answer that argued that another company handled the shipment and that this was “not an overseas shipment handled by our company.” Answer at 2. The answer included exhibits in support of this argument.

On March 4, 2020, Complainant filed a document labeled as a response to Respondent’s motion. Although Respondent did not file a motion, the answer could be read to be a motion to dismiss. No filings have been received by either party since then.

It seems most efficient at this point to treat Respondent’s answer as a motion to dismiss and Complainant’s response as a response to the motion. However, the parties will be provided an opportunity to file any additional legal or factual arguments and any other exhibits that they would like to be considered regarding the request to dismiss the complaint. The parties should review the issues raised in the initial order and should address whether insurance was purchased for the shipment and whether a claim has been made against the insurance or bond on file with the Federal Maritime Commission.

Any additional arguments or documents must be filed by email to secretary@fmc.gov with a copy to judges@fmc.gov and the opposing party by April 14, 2020.



Erin M. Wirth

Chief Administrative Law Judge